

sentence of imprisonment attached when the proctors, being officers of the university, brought before the vice-chancellor for adjudication a person found by them in Cambridge, and apprehended by them as being a person suspected of evil, within the meaning of the charter: and that, as the charter defined no form of proceeding, either for the hearing, or the determination, or the committal, an action of trespass could not be sustained for any of the judicial acts complained of.—Held also that, there being no express provision in the charter on the subject, the vice-chancellor was not bound to hear and examine upon oath: and that the absence of a written warrant for the commitment of the plaintiff afforded no cause of action.

The declaration in this case charged that the defendant caused an assault to be made on the plaintiff, and caused her to be unlawfully imprisoned and kept and detained in prison in a certain gaol or place of confine- [524]—ment commonly called and known by the name of the Spinning House, for a long space of time: and also caused the plaintiff to be forced and compelled to take from her person the clothes which she was then wearing, and caused her said clothes to be taken away from her, and caused her to be deprived of the use and enjoyment thereof for a long space of time, and caused her to be forced and compelled to put on certain other clothes of inferior quality and description, and to wear the same during the aforesaid long space of time, and caused the plaintiff to be in the said gaol or place of confinement forced and compelled to work and labour for divers long spaces of time whilst the plaintiff was imprisoned in the said gaol or place of confinement as aforesaid: whereby the plaintiff was greatly bruised, wounded, and hurt, and was greatly injured and damaged in her reputation and character, and was otherwise greatly injured: and other wrongs to the plaintiff the defendant did: claim 500l.

The defendant pleaded,—first, not guilty.

Secondly, that the chancellor and scholars of the university of Cambridge, from time whereof the memory of man is not to the contrary until the time of [525] making a certain act of parliament made and passed in the 13th year of the reign of Queen Elizabeth (13 Eliz. c. 29), intituled “An Act concerning the several incorporations of the universities of Oxford and Cambridge and the confirmation of the charters, liberties, and privileges granted to either of them,” were a body corporate by various names of incorporation, amongst others, by the name of the Chancellor, Masters, and Scholars of the University of Cambridge, and by that name had succession, and that by the said act it was enacted that the then chancellor of the said university and his successors for ever and the masters and scholars of the same university for the time being should be incorporated and have perpetual succession by the name of the Chancellor, Masters, and Scholars of the University of Cambridge: that the office of proctors of the said university is, and from time whereof the memory of man is not to the contrary was, an antient office, and that the persons for the time being duly holding such office have, and each of them hath, during all the time aforesaid, by custom of and in the said university from time whereof the memory of man is not to the contrary there used and approved, for the preservation of good order and morality amongst the scholars of the said university, visited, and been used and accustomed and of right ought to visit, all and every the public streets and places in the town of Cambridge, and within the precincts of the said university, at all times of the day and night, and have and each of them hath been used and accustomed, and of right ought, to arrest and apprehend all such women as in such their visits they or either of them have or hath found within the limits and precincts aforesaid, who, upon reasonable grounds, have been suspected by the said proctors or either of them to be loose or disorderly women, or who within the limits and precincts [526] aforesaid have been found keeping company with any of the scholars aforesaid in such manner and under such circumstances as upon reasonable grounds to be by the said proctors or either of them suspected of evil, and to take such persons so arrested and apprehended before the vice-chancellor of the said university for the time being, to be dealt with according to law: That the office of vice-chancellor is, and from time whereof the memory of man is not to the contrary was, an antient office of the said university: and that, before and at the time of committing the alleged grievances in the declaration mentioned, the defendant was the vice-chancellor of the said university: and that, from time whereof the memory of man is not to the contrary until the passing of the said act, upon any such women having been so arrested and apprehended and taken before the vice-chancellor of the said university